

-

File No.: EXP202201725

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Ms. A.A.A. (hereinafter the complainant) filed a complaint with the Spanish Agency for Data Protection on 02/02/2022. The complaint is directed against SEUR GEOPOST S.L.U. with NIF B82516600. The reasons for the complaint are as follows:

- 1) The complainant purchased a product from a third party through a platform managed by Milanuncios, where the buyer and seller establish contact, reach an agreement regarding the sale of the product, and manage the payment and shipping of the product.
- 2) As she was not satisfied with the product received from that third party, she wishes to identify it, and therefore directs this request to Milanuncios, as the service provider, who denies such possibility based on data protection regulations.
- 3) Despite the above, the affected party claims that the seller did have access to her personal data as a buyer. She supports this assertion based on a screenshot of the label that the courier provided to the buyer when he went to collect the product at the seller's home (this shipping option is only available using "Seur").
- 4) The label or delivery note contains handwritten the name and surname of the affected party and her address. When shipments are made by Correos, one must go to the office and use the label provided by Milanuncios.

She provides:

- A screenshot of the label that the courier provided to the buyer when he went to collect the product at the seller's home.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to ADEVINTA SPAIN, S.L., for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was recorded on 15/02/2022 as stated in the acknowledgment of receipt in the file.

On 14/03/2022, a response was provided stating the following:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

- Regarding the exercise of the right of access made by the complainant, ADEVINTA (hereinafter Milanuncios) stated the following:

- o That "any user of Milanuncios has, at all times, easy, remote, and automatic access to their personal data, including all conversations they have with other users of the application."
- o For each message exchanged with another user, the responsible party "sends an email to their email address containing a copy of that message."
- o In this case, the first complaint filed by the data subject was not understood as an exercise of the right of access "as it did not indicate so." However, the User Support service provided "a response to the complainant aimed at processing her request and facilitating access to the communications requested by her."

- Regarding the personal data of the buyer, here the complainant, provided to the seller, Milanuncios states the following:

- o No personal data is provided to the buyer, only information about the shipment and a tracking code

for the package. Likewise, in no case are personal data of the buyer provided to the seller, but rather the former is sent a code that must be written on the package to be sent to the buyer and that will be managed by the courier company.

o In this particular case, they indicate that it was the courier company that "allegedly provided her personal data to the seller, in a delivery note or similar document that contains identifying data and her postal address." The responsible party has contacted this company (SEUR) "since some users had complained that they received the data of the other party when shipments were made." The mentioned company has been informed "to opt for a means that allows coding or anonymizing the personal data of those involved in the sale," and it is indicated that "so far, the response received has been that they were complying with data protection regulations."

o It has been verified by the acting inspector that in the Privacy Policy published on the Milanuncios website (<https://www.milanuncios.com/legal/politica-privacidad>) as of the date of this report, the following is stated in point 5:

"5. Recipients

To whom will your data be communicated?

Your personal data will be communicated to third parties in the following cases:

- Your personal data will be communicated to the advertiser indicated in the details of each advertisement to enable contact with the latter.
- Your personal data may be accessed by those providers that provide services to Adevinta Spain S.L.U., such as content hosting services, instant messaging, notification sending, advertising services, etc. Adevinta Spain S.L.U. has signed the corresponding data processing contracts with each of the providers that provide services to Adevinta Spain S.L.U.
- Your personal data may be transferred to the courier companies responsible for the transport service of Milanuncios Express to deliver the package to its destination and, where applicable, manage returns.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/14

- Your personal data may also be transferred to the competent authorities in cases where there is a legal obligation."

THIRD: On 17/03/2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

- On 20/04/2022, the data inspection requested information and documentation from the respondent regarding the reported facts. From the response provided by their representative, the following is inferred:

o "On 23 September 2021, a commercial agreement was established for the provision of goods transportation services between the company ADEVINTA SPAIN, S.L.U, which manages the platform Milanuncios.com (hereinafter Milanuncios), and SEUR GEOPOST, S.L.U (hereinafter SEUR). According to the services described in the commercial agreement, SEUR is obliged to provide Milanuncios with the transportation service consisting of the collection of the shipments that it requests and at the location indicated, for delivery to the destination and corresponding timeframe. In order for SEUR to fulfill its contractual obligations, Milanuncios must transmit to SEUR as many personal data as there are collections of goods to be made, so that SEUR can process such personal data to provide the requested transportation service and, in its capacity as Data Controller. As described in the commercial agreement between the parties, at the time of collection, Milanuncios will provide SEUR with a list of the shipments to be collected (point V of the annex "TECHNICAL AND

OPERATIONAL ISSUES"), with the personal information that is strictly necessary to carry out the transportation service, which, according to the representative of SEUR, specifically includes the personal data of both the sender and the recipient (name, surname, postal address), and which must necessarily be included on the packages for SEUR to deliver to the recipient.

This data communication will be carried out through the WS service platform of SEUR made available to Milanuncios, as indicated in Annex X "Commercial Agreement Integration of Clients and use of the Commercial Agreement Platform with Milanuncios.

The representative of SEUR states that SEUR, as a provider of national and international transportation services, mainly for messaging and parcel delivery, is governed by Law 15/2009, of 11 November,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/14

of the land transport contract for goods (hereinafter the Law 15/2009), which sets forth various obligations that must be fulfilled by both carriers and transport intermediaries and shippers for the proper development of the service provided, as well as the information that must be offered to the interested parties.

In this way, according to the definitions established in Article 4 of the aforementioned Law 15/2009, the shipper is identified as the person who contracts in their own name the execution of a transport and against whom the carrier is obliged to carry it out, in this case, the sender or seller of the shipment; as the carrier, the one who assumes the obligation to carry out the transport in their own name, regardless of whether they execute it by their own means or contract its execution with other parties, in this case, SEUR; and finally, as the recipient, the person to whom the carrier must deliver the goods at the destination, in this case, the recipient or buyer of the shipment.

Among the obligations established in Law 15/2009, the necessity to issue a bill of lading for each shipment made stands out, which must contain the information described below (Article 10.1 and 3 of the aforementioned Law 15/2009):

- Place and date of issuance.
- (...).
- Name and address of the carrier and, where applicable, of the third party receiving the goods for transport.
- Place and date of receipt of the goods by the carrier.
- Place and, where applicable, expected date of delivery of the goods at destination.
- (...)
- Nature of the goods, number of packages, and identifying marks and signs.
- Identification of the hazardous nature of the shipped goods, as well as the designation provided for in the legislation on the transport of hazardous goods.
- Quantity of goods shipped, determined by their weight or expressed in another way.
- Type of packaging used to condition the shipments.
- Agreed price of the transport, as well as the amount of foreseeable expenses related to the transport.
- Indication of whether the transport price is paid by the shipper or by the recipient.

For its part, Article 11 of Law 15/2009 indicates that the bill of lading will be issued in three original copies, which will be signed by the shipper and the carrier and must be delivered as follows: the first copy of the bill of lading to the shipper, the second will travel with the transported goods, and the third will remain with the carrier to justify the delivery. Based on the above, SEUR, as stated by its representative, complies with the obligation to deliver each copy of the bill of lading to the parties indicated in Law 15/2009 and according to the described procedure; one copy will travel with the package, another will remain with the carrier (SEUR) to justify the delivery, and the third will be delivered to the shipper (sender), which will imply that the latter is aware of the personal data included in said bill of lading, among which are the personal data of the recipient or buyer.

FIFTH: On 21/12/2022, the Director of the Spanish Agency for Data Protection agreed to initiate

sanctioning proceedings against SEUR, S.A. for the alleged infringement of Article 5.1.f) of the GDPR, sanctioned in accordance with the provisions of Article 83.5.a) of the aforementioned GDPR.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
5/14

SIXTH: Upon notification of the initiation agreement on 27/12/2022, SEUR GEOPOST, S.L.U. requested a copy of the file and an extension of the deadline to submit allegations; the copy was sent, and the extension was granted by the instructor's letter dated 04/01/2023.

On 12/01/2023, both SEUR GEOPOST, S.L.U. and SEUR, S.A. submitted the same written allegations reiterating the arguments presented and, additionally, stating the inconsistencies present in the same that essentially affect its validity; the incorrect identification of the responsible party; the absence of unlawfulness in their conduct, the lack of culpability in their actions, and, subsidiarily, in the event that the arguments put forth are not taken into account, a reduction or mitigation of the initially proposed sanction.

SEVENTH: On 23/06/2023, the instructor of the procedure agreed to open a period for the practice of evidence, agreeing on the following:

- "To consider as reproduced for evidentiary purposes the claim filed by the claimant and its documentation, the documents obtained and generated by the Inspection Services that are part of the file.
- To consider as reproduced for evidentiary purposes the allegations to the initiation agreement presented by the respondent and the accompanying documentation.
- To request ADEVINTA to provide accreditation and documentation of the contacts in which SEUR is urged to code or anonymize the personal data of those involved in the purchase and sale, so that neither the buyer has access to the seller's data, nor vice versa; given that two transport operations occur: first, the carrier that collects the merchandise at the seller's address and, second, the carrier that delivers the merchandise to the buyer: Report and describe how these operations are carried out. How is each of these operations documented? What documents are delivered by the carrier to the seller? What documents are delivered by the carrier to the buyer? A copy of the conversations held by the claimant, the buyer; the contract entered into with SEUR."

On 30/06/2023, ADEVINTA responded to the practical evidence, the content of which is included in the file.

EIGHTH: On 24/07/2023, a Proposal for Resolution was issued stating that the Director of the Spanish Agency for Data Protection should archive the case against SEUR, S.A. for the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5.a) of the aforementioned GDPR.

This Proposal for Resolution was notified to both SEUR, S.A. and SEUR GEOPOST, S.L.U., and after the deadline for allegations had passed, no written allegations were submitted.

NINTH: From the actions taken in this procedure, the following have been established:

PROVEN FACTS

FIRST. On 02/02/2022, a letter from the claimant was received by the AEPD in which they state that they purchased a product from a third party through the Milanuncios platform, through which the buyer and seller establish contact, reaching an agreement.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
6/14

Regarding the purchase, it manages the payment as well as the shipment of the product; as she is not satisfied with the product received, her desire is to identify the seller, for which she addresses Milanuncios, as the service provider, who denies such possibility based on data protection regulations; nevertheless, the claimant states that, on the contrary, the seller did have access to her personal data as a buyer, relying on a screenshot of the label that the courier provided her when she went to pick up

the product at the seller's home; the delivery note contains handwritten the name and surname of the claimant and her address (when the delivery is made through "SEUR"), however, when shipments are made using the Correos service, one must go to the office and use the label provided by Milanuncios. SECOND. A screenshot of the delivery note that the courier provided to the claimant when she went to pick up the product at the seller's home, which contains her personal data, has been submitted.

THIRD. The claimant has submitted emails exchanged with ADEVINTA (Milanuncios) between 08/17/2021 and 10/07/2021; ADEVINTA, in an email sent to the claimant in which she complained about the defective purchase of some ink cartridges, responded on 09/06/2021 stating:

"(...)

We are sorry, but we do not understand your inquiry. Please provide us with more details so we can assist you.

On August 4, 2021, you wrote to customer service to return the purchase with order number LEMONPAY-92665. After reviewing your case, the return was processed and the money for your purchase was refunded.

We have checked your account and see that you made another order with the same seller previously. We did not receive any issues regarding this order, and it was paid to the seller.

Remember that when you receive the package, you have 24 hours to notify us in our help section, right here. After that time, the money is automatically credited to the seller.

Milanuncios does not review or approve the products that users buy and sell through the service; therefore, Milanuncios shall not be responsible, either directly or indirectly, or subsidiarily, for any damages or losses of any nature.

(...)"

The claimant in an email dated 09/16/2021 responded:

"(...)

Purchase 1

(<https://www.milanuncios.com/impresoras/cartucho-62-xl-409602092.htm>): Ink cartridge that did not work properly. I mention this due to the 24-hour rule, but I was told that it was fine, that they would send me another one for free and told me to buy another cartridge of the same type for a lower amount (**URL.1).

Purchase 2 (**URL.1): They sent me 2 cartridges just in case. One does not work at all (the printer does not recognize it) and the other works fine (or so it seemed).

In this part, I was told to request a refund from you and include the cartridge from the first purchase and the one that does not work from the second purchase, and that is what I did. This way, the matter would be settled correctly. I paid €15.75 for a cartridge in good condition.

I have the feeling that this way of acting on their part and the one they made me participate in is not very lawful and I believe it could contravene the rules of Milanuncios. At least, it did not please me at all.

It is difficult for you to receive an issue within 24 hours because there may be "hidden defects" that are seen later, as has been the case here. I have printed 7 pages since it arrived a month ago, of which the last 3 are useless. I do not pay €15.75 to print 4 pages.

How can I rate this seller? I do not know where or how... I also want to report him.

On the other hand, I want all the data of this seller to file the corresponding complaint.

(...)"

Milanuncios on 09/17/2021:

"(...)

We are sorry, but Milanuncios processes the return of the product if you notify us within 24 hours. You did not do this for the first purchase, and the money was credited to the seller.

Milanuncios does not review or approve the products that users buy and sell through the service; therefore, Milanuncios shall not be responsible, either directly or indirectly, or subsidiarily, for any damages or losses of any nature.

On the other hand, according to the Data Protection Law, we cannot provide information about ads or users to individuals. However, we can do so before a judge or the police.

If you file a complaint, tell the authorities to contact us through our help section - in the Official Bodies

section - so we can cooperate with them. Please indicate to them to provide us with the reference number, phone number, or email of the ad. This way, we will expedite the process. From Milanuncios, we want to help you as much as possible.

(...)"

The claimant on 09/17/2021:

"(...)

If Milanuncios only intermediates between the parties and disassociates itself from everything, the Data Protection Law cannot be handled at its convenience because in a transaction between individuals both must have the other's data. The other party has my data.

What kind of discrimination is this that I cannot have the data of the other party? Or have you given it to them in violation of the Data Protection Law that you mention?

Then, do I also have to report Milanuncios for not having complied with it?

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/14

As you will understand, I cannot file a complaint if I do not have information about the accused. They would never accept it from me.

How can I evaluate this seller? I do not know where, nor how... I also want to report him.

(...)

ADEVINTA finally indicated in an email dated 07/10/2021 regarding the possibility of filing a claim:

"(...)

Indicate to the authorities that they should contact us through our help section - in the Official Bodies section - so that we can collaborate with them. Please tell them to provide us with the reference number, phone number, or email of the advertisement. This way we will expedite the process.

From Milanuncios, we want to help you as much as possible.

(...)"

FOURTH. The claimant has submitted PDF screenshots of the conversations held with the seller through the website regarding the ink cartridges:

Claimant: But I already paid the other day and I had to accept

Seller: Yes, but now it does not show up for me to accept

July 21

R: Wow, well now I can't repeat it

V: Why?

R: Because I do not have a payment card with me.

V: Well, when you can

August 2

V: hello, your name is A.A.A.

R: Hello

It is the name I put as the recipient, why?

V: Ah, okay

Because they have come for the package

Next, there is an image of the delivery note that is included in the proven fact 2.

They gave me this and I didn't know if it was you.

September 14

R: Hello

I have printed 6 sheets since you sent me the cartridge: one for testing, 2 for plane tickets, and 3 now for some notifications, and of these 3, one has come out half and the other two nothing at all

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

9/14

V: Hello, in summer if you do not print regularly they dry out

Do this

Next, there is a screenshot

FIFTH. ADEVINTA in an email sent to the claimant on 11/03/2022 stated that: "... On the other hand, we confirm that ADEVINTA SPAIN is committed to its users and to data protection regulations, so that, under no circumstances have we provided any of your personal data to the seller. From Milanuncios, the seller is provided with a numerical code without reference to any personal data of the buyer, which must be written on the package that they are going to send to the buyer and which will be managed by the courier company, in this case SEUR, an external and independent service contracted by ADEVINTA SPAIN to carry out the shipment of packages and which will handle the personal data of buyers and sellers in accordance with its privacy policy. The facts you report related to the activity of the courier company are outside the data processing carried out by ADEVINTA SPAIN, as these are the responsibility of the transport company used (in this case SEUR, S.A.). However, due to our concern for the privacy of personal data processed in all processes related to our portals, we have initiated discussions with SEUR S.A., with the aim of ensuring and confirming the privacy of our users in these transactions.

SIXTH. On 23/09/2021 ADEVINTA SPAIN, S.L.U., the company that manages the Milanuncios.com platform, and SEUR GEOPOST, S.L.U. signed a Commercial Agreement in Barcelona for the provision of goods transport services.

SEVENTH. ADEVINTA in a letter dated 14/03/2022 has indicated that "... In this regard, and as observed in the contractual provision, the assignee, in this case, the courier company, is required to act in accordance with the provisions of the data protection regulations in the processing of the data provided to proceed with the service requested by the users.

(...)

Therefore, we confirm that Milanuncios at no time provides personal data to the buyer, but only information about the shipment and a tracking code for the package

(...)

Likewise, under no circumstances are the personal data of the buyer provided to the seller, but rather the former is sent a code that must be written on the package that they are going to send to the buyer and which will be managed by the courier company

(...)

In the case at hand, it has been the courier company, in this case SEUR S.A., as the data controller, that according to what the claimant has stated, has allegedly provided their personal data to the seller, in a delivery note or similar in which identifying data and their postal address are included.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

10/14

For further clarification, and in accordance with the principle of proactive responsibility, Milanuncios has contacted SEUR S.A. on several occasions, urging it to review its shipping system, as the data controller, since some users had complained that they received the data of the other party when shipments were made, suggesting that a method be chosen that would allow for the encoding or anonymization of the personal data of those involved in the sale, so that neither the buyer has access to the seller's data, nor vice versa.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data

Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The administrative procedure is regulated in Title IV of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), which regulates the bases of the procedure for the exercise of sanctioning power.

In its Article 64. Agreement to initiate sanctioning procedures, it is established that: [The underlining is ours]

"1. The initiation agreement shall be communicated to the instructor of the procedure, with the transfer of all actions existing in this regard, and shall be notified to the interested parties, understanding in all cases that the accused is included.

Likewise, the initiation shall be communicated to the complainant when the regulatory norms of the procedure so provide.

2. The initiation agreement must contain at least:

- a) Identification of the person or persons presumably responsible.
- b) The facts that motivate the initiation of the procedure, its possible qualification, and the sanctions that may correspond, without prejudice to what results from the instruction.
- c) Identification of the instructor and, where appropriate, Secretary of the procedure, with express indication of their recusal regime.
- d) Competent body for the resolution of the procedure and the norm that attributes such competence, indicating the possibility that the presumed responsible party may voluntarily acknowledge their responsibility, with the effects provided for in Article 85.
- e) Provisional measures that have been agreed upon by the competent body to initiate the sanctioning procedure, without prejudice to those that may be adopted during it in accordance with Article 56.
- f) Indication of the right to make allegations and to be heard in the procedure and the deadlines for exercising this right, as well as an indication that, in the event of not making allegations within the established period regarding the content of the initiation agreement, it may be considered a proposal for resolution when it contains a precise pronouncement regarding the attributed responsibility.

3. Exceptionally, when at the time of issuing the initiation agreement there are not sufficient elements for the initial qualification of the facts that motivate the initiation of the procedure, the aforementioned qualification may be carried out in a subsequent phase through the preparation of a Statement of Charges, which must be notified to the interested parties."

The above is in accordance with the provisions of Chapter III of Title Preliminary of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP), in which the principles of the sanctioning power are established, among which is the principle of responsibility.

In its Article 28, Responsibility, it states:

"1. Only individuals and legal entities may be sanctioned for acts constituting an administrative infraction, as well as, when a law recognizes them the capacity to act, the groups of affected parties, unions, and entities without legal personality and independent or autonomous assets, that are found responsible for them by way of intent or negligence.

(...)"

The regulation follows the current criterion in our legal system according to which the requirement of culpability is essential for the emergence of sanctioning responsibility, which prevents the imposition of sanctions based on the objective responsibility of the presumed infringer.

The requirement of sanctioning responsibility presupposes the existence of the unlawful conduct described in the sanctioning type and the subjective element of the

12/14

infringement. The presence of this element as a condition for the emergence of liability for sanctions has been recognized by the Constitutional Court, among others, in STC 76/1999, in which it states that administrative sanctions share the same nature as criminal ones, being one of the manifestations of

the State's ius puniendi, and that, as a requirement derived from the principles of legal certainty and criminal legality enshrined in Articles 9.3 and 25.1 of the CE, it is essential to impose them.

III

In the present case, SEUR GEOPOST, S.L.U. has expressed in the proceedings for allegations regarding the initiation agreement that it raised doubts due to the existence of certain inconsistencies detected in the aforementioned document that essentially affect its validity, as the person responsible for the infringement was not correctly identified, for the purposes contemplated in Article 64.2 a) of the LPACAP.

Thus, while in the FIRST PRECEDENT it is stated that:

"FIRST: Ms. A.A.A. (hereinafter the claimant) on 02/02/2022 filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against SEUR GEOPOST S.L.U. with NIF B82516600 (hereinafter the accused). The reasons on which the complaint is based are as follows:",

And, subsequently, in the dispositive part of the same, it is stated in its first point that:

"By the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

1. TO INITIATE SANCTIONING PROCEDURE against SEUR, S.A. with NIF A28985992, for the alleged infringement of Article 6.1 of the GDPR, sanctioned in accordance with the provisions of Article 83.5.a) of the aforementioned GDPR.

And in point 5:

"5. NOTIFY this Agreement to SEUR, S.A. with NIF A28985992, expressly informing it of its right to a hearing in the procedure and granting it a period of TEN WORKING DAYS to formulate allegations and propose the evidence it deems appropriate."

This raises doubts about who is responsible and the requirement of liability, since SEUR, S.A., although it is a company of the same business group, has no relation whatsoever to the facts subject to the complaint, as can also be inferred from the documentation provided in the file.

According to reiterated jurisprudence, the principles that inspire the criminal order are applied, with certain nuances, to sanctioning Administrative Law, as both are manifestations of the punitive order of the State. Among those principles, the element or principle of culpability has special significance.

The Judgment of the Constitutional Court (STC) 76/1990, of April 26, (F.J. 8.B) stated that the presumption of innocence relates to the proof of authorship of the facts and, furthermore, to the culpability attributable to the one who, in their case, carries them out, since every sanctioning resolution, whether criminal or administrative, requires certainty of the facts attributed, obtained through evidence of charge, and certainty of the judgment of culpability regarding those same facts.

In this sense, and confined to the scope of the sanctioning administrative procedure, it is worth citing the judgment of the Supreme Court, Third Chamber, of 24/06/1998 (Rec. 1776/1994), Legal Basis 2, which states: "Personal responsibility becomes the basis on which the punitive system rests since no one can be condemned or sanctioned except for acts that, either by intent or by negligence, can be directly attributed to them."

In light of the allegations made and the documentation provided in the file, SEUR, S.A., which appears in the dispositive part of the initiation agreement as responsible, is exempt from liability, as it does not appear as responsible for the processing in the facts subject to the procedure that are the cause of its opening.

For these purposes, it is informed that, to the extent that the data processing that is the subject of the complaint, which allegedly contravenes the GDPR, has not prescribed, nothing prevents the AEPD, in relation to the aforementioned processing, from proceeding to open a sanctioning procedure against the responsible party, the company SEUR GEOPOST, S.L.

It should be noted that the processing of personal data concerning the complaint filed with this AEPD could constitute an infringement of Article 5.1.f) of the GDPR and that Article 72 of the LOPDGGD classifies the infringement of Article 5.1.f) of the GDPR as very serious, for which it sets a prescription period of three years. Regarding the computation of the prescription period, Article 30 of the LRJSP states that "it will begin to be counted from the day the infringement was committed. In the case of continued or permanent infringements, the period will begin to run from when the infringing conduct ended."

Since the processing of the personal data of the complaining party is not attributable to SEUR, S.A. against whom the sanctioning procedure is directed as stated in the dispositive part of the initiation agreement, it is appropriate to agree to archive the same.

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been proven,

The Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ARCHIVE against SEUR, S.A., with NIF A28985992, for an infringement of Article 5.1.f) of the GDPR, classified in Article 83.5.a) of the GDPR.

SECOND: TO NOTIFY this resolution to SEUR, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/14

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es